

Mali 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Mali during the year.

Significant human rights issues included credible reports of: arbitrary or unlawful killings; disappearances; torture or cruel, inhuman, or degrading treatment or punishment; arbitrary arrest or detention; serious abuses in a conflict; unlawful recruitment or use of children in armed conflict; serious restrictions on freedom of expression and media freedom, including violence or threats of violence against journalists, unjustified arrests of journalists, and censorship; trafficking in persons, including forced labor; and significant presence of the worst forms of child labor.

With occasional notable exceptions, the transition government did not take credible steps to identify and punish officials who committed human rights abuses.

On January 25, the transition government terminated the 2015 Algiers Accord for Peace and Reconciliation in Mali (Algiers Accord). Nonstate armed groups, including several signatories to the Algiers Accord, committed serious human rights abuses, including summary executions, physical abuse, and the unlawful recruitment and use of child soldiers.

Russia's Wagner Group forces, often operating in close coordination with the armed forces, allegedly committed unlawful killings, rapes, and other abuses. Terrorist groups kidnapped and killed civilians, including humanitarian workers. Ethnic militias, formed to defend one ethnic group from other ethnic groups or other armed groups, committed serious human rights abuses, including summary executions and destroying homes and food stores. Authorities generally did not investigate these abuses, many of which occurred in areas outside the government's control.

Section 1. Life

a. Extrajudicial Killings

There were numerous reports the transition government or its agents, including associated Wagner Group forces, committed arbitrary or unlawful killings as military operations intensified in central and northern areas of the country. The gendarmerie and the Ministries of Justice and Defense conducted investigations of some of these killings, but few resulted in punishment of offenders.

On October 25, a government soldier shot and killed a man in Yelimané in the Kayes region when the man was passing near the military base there.

Killings by extremist groups and criminal elements of civilians occurred in all regions of the country. For example, on June 27, local press reported

terrorists affiliated with the Islamic State in the Sahel opened fire on an internally displaced persons (IDP) camp near Menaka, killing seven IDPs. According to a July 1 UN secretary-general report, Jama'at Nusrat al-Islam wal Muslimeen (JNIM) and Dozo militias killed 45 civilians including children in the central regions of Mopti and Segou.

On July 21, militants with suspected ties to JNIM attacked the village of Dembo-Songho in the Bandiagara region, killing at least 26 individuals, including 22 farmers and four Dozo hunters of the Dan Na Ambassagou (DNA) self-defense group. In September, an improvised explosive device killed four civilians in Kidal.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of transition government authorities.

c. War Crimes, Crimes against Humanity, and Evidence of Acts that May Constitute Genocide, or Conflict-Related Abuses

The military, Wagner Group forces, and several armed groups committed serious human rights abuses in the northern and central parts of the country. In addition to increased attacks in the center of the country, reports of targeted and indiscriminate attacks on the civilian population in

other parts of the country, notably in the north, significantly increased following the withdrawal of international forces, such as France's Operation Barkhane in 2022 and the UN Multidimensional Integrated Stabilization Mission in Mali in 2023. These armed groups included forces such as the Permanent Strategic Network for the Defense of the People of Azawad (CSP-DPA) and DNA, and terrorist and violent extremist organizations such as ISIS-Sahel and JNIM.

Most human rights abuses committed by the military appeared to target Fulani, Tuareg, and Arab individuals and were believed to be either retaliation for attacks attributed to armed groups associated with those ethnicities or the result of increased counterterrorism operations. For example, Human Rights Watch (HRW)'s *World Report 2024* stated Fulani made up the majority of the victims of the February 2023 abuses in Séguéla attributable to Wagner Group forces. The government failed to pursue and investigate human rights abuses in the center and north, which were widely controlled by JNIM and ISIS-Sahel terrorist organizations, and the CSP-DPA and DNA armed groups.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, but the government occasionally restricted

this right. Independent media were active and expressed a wide variety of views with some restrictions, particularly regarding military operations. Individuals could criticize the government, but only within prescribed limits.

The National Commission for Human Rights and local human rights organizations expressed serious concern regarding the narrowing of civic space and democratic debate.

On July 12, authorities arrested Youssouf Diawara, coordinator of the Coordination of Movements, Associations, and Sympathizers of Imam Mahmoud Dicko and member of the opposition umbrella group Synergy of Actions for Mali, for his participation in a June 7 march against the transition authorities. In October, authorities released Diawara after he received a two-month suspended sentence.

Physical Attacks, Imprisonment, and Pressure

In Bamako and the rest of the south there were sporadic reports of threats against journalists, including those who criticized transition authorities, and authorities sometimes arrested journalists, bloggers, and radio announcers. Reporting on the situation in the north and the fight against terrorism were dangerous topics due to the presence of active armed groups.

Censorship by Governments, Military, Intelligence, or Police

Forces, Criminal Groups, or Armed Extremist or Rebel Groups

International human rights organizations and civil society organizations expressed concerns regarding media censorship. Press organizations deplored the censorship and self-censorship of media.

On April 11, the High Authority for Communication (HAC) banned media from reporting on activities of political parties and associations. The umbrella press organization La Maison de la Presse rejected the HAC's directive and urged the press community not to comply, with its president noting no law prohibited media coverage of political activities and asserting the HAC had exceeded its authority.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for workers, except members of the armed forces, to form and join independent unions, bargain collectively, and conduct strikes. The law prohibited antiunion discrimination. There were restrictions limiting these rights, such as the requirement workers had to be employed in the relevant profession before they could form a union. Members responsible for the administration or management of a union had to reside in the country and be free of any criminal convictions that could suspend their right to vote in national elections. The process to register a union was

cumbersome and time consuming, and the transition government sometimes denied trade union registration on arbitrary or ambiguous grounds. There were no limitations on freedom of association.

Employers had the discretion to refuse to bargain with representatives of trade unions. Unions had to exhaust mandatory conciliation and arbitration procedures in the labor code before they could strike legally. Regulations required civil servants and workers in state-owned enterprises to give two weeks' notice of a planned strike and to conduct mediation and negotiations with the employer and a third party, usually the Ministry of Labor and Public Service.

Authorities did not consistently enforce laws protecting freedom of association, collective bargaining, and the right to strike, but workers generally exercised these rights. The transition government did not always respect unions' right to conduct their activities without interference.

Penalties for violations of freedom of association, collective bargaining, and the right to strike were not commensurate with analogous violations such as civil rights violations. Penalties were sometimes enforced.

Although unions and worker organizations were independent of the transition government and political parties, they were closely aligned with various political parties or coalitions.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for a national minimum wage in all sectors of the formal economy. Although the minimum wage was above the World Bank's poverty line for the country, minimum wage requirements did not apply to workers in the informal and subsistence sectors, which included most workers.

The legal workweek was 40 hours, except in the agricultural sector, where the legal workweek ranged from 42 to 48 hours, depending on the season. Alleged violations of wage, hour, or overtime laws were common in the banking, agriculture, transport, private security, and mining sectors.

Occupational Safety and Health

The law provided for a broad range of occupational safety and health (OSH) standards in the workplace, appropriate for the main industries in the country. The government did not actively identify unsafe conditions or act on complaints. Workers had the right to remove themselves from work situations endangering health or safety without jeopardy to their

employment. Authorities, however, did not effectively protect employees in these situations. Workers often were reluctant to report violations of occupational safety regulations due to the risk of losing their jobs.

Alleged violations of OSH standards were common in the mining sector, in particular gold mines.

Wage, Hour, and OSH Enforcement

The Ministry of Labor and Public Service had responsibility for labor law enforcement; however, it did not effectively enforce minimum wage, overtime, and OSH laws. Penalties for violations were commensurate with those for similar crimes, such as fraud and negligence. Penalties were rarely applied against violators. Although the number of labor inspectors was not sufficient to enforce compliance, inspectors had the authority to make unannounced inspections and initiate sanctions to attempt to prevent violations.

c. Disappearance and Abduction

Disappearance

There were numerous reports of enforced disappearances carried out by government security forces in the conflict in the central and northern regions of the country. Human rights observers reported they were unable to verify the whereabouts of dozens of these purportedly detained

prisoners. The limited capacity of the Penitentiary Administration to keep accurate records made it difficult to locate individuals within the country's penal system. Human rights organizations estimated the intelligence service, the National Agency for State Security (ANSE), held approximately 100 unacknowledged detainees. These organizations noted they could not verify the estimates because they did not have access to the ANSE's facilities or to the gendarmerie facilities in Sevaré, which sometimes transferred prisoners to the ANSE.

On August 16, security forces allegedly abducted former parliamentarian Idrissa Sankaré of the Bankass *Cercle* (regional subdivision) on unspecified charges. Authorities released him on September 10.

Extremist groups also committed numerous disappearances. These abductions were allegedly perpetrated by various actors, some of whom allegedly collaborated with JNIM and other armed groups. In July, the Synergy of Associations of the Movements of Dogon Youth denounced the disappearance of many civilians abducted on the Parou-Songobia road in the Bandiagara region. In April 2023 unknown persons in Koutiala abducted Abdou Agouzer Maiga, a former member of the parliament. Maiga remained in captivity at year's end.

Jihadist groups, armed groups associated with CSP-DPA, and ethnic self-defense militia groups reportedly held hostages. In the central region, DNA carried out abductions of civilians from Dogon villages. In August, former

Algiers Accord signatory armed groups released a video showing at least a dozen government soldiers captured in different localities throughout the year.

In August, jihadist groups abducted dozens of Dogon travelers between Bandiagara and Bankass; they remained in captivity as of October.

Prolonged Detention without Charges

The constitution and law generally prohibited arbitrary arrest and detention. Nevertheless, government security forces arbitrarily arrested and unlawfully detained numerous individuals. The CSP-DPA and other armed groups unlawfully detained individuals in connection with the continued conflict in the northern and central regions.

The law allowed detainees to challenge the legal basis or the arbitrary nature of their detention in court. Authorities generally released individuals promptly if their detention was determined to have been arbitrary. According to human rights organizations, the right to due process of individuals arrested or detained in connection with alleged terrorism-related offenses “remained under significant strain.”

The law required judicial warrants for arrest. It also required police charge suspects or release them within 48 hours of arrest. Although police usually secured warrants based on sufficient evidence and through issuance by a duly authorized official, these procedures were not always followed. The

law provided for the transfer of detainees from police stations to the prosecutor's office within 72 hours of arrest, but authorities sometimes held detainees longer in police stations. Detainees had a limited right to bail, but authorities often granted conditional release for minor crimes and civil matters. Authorities occasionally released defendants on their own recognizance. While an accused person could request conditional release, lawyers stated conditional release for more serious crimes was often not granted even when legal requirements were met. Moreover, even when a court decided to grant conditional release or acquitted an accused person, the prosecutor could appeal the decision, automatically suspending the court's orders.

Detainees had the right to a lawyer of their choice or, if they could not afford one, to a state-provided lawyer. Detainees were typically granted prompt access to their lawyers. Nevertheless, a shortage of private attorneys, particularly outside Bamako, often prevented access to legal representation.

In many cases gendarmes detained suspects on ANSE orders and then transferred them for questioning to the ANSE, which generally held suspects for hours or days. Due to the country's size, long travel times, and poor road conditions, the transfer process itself sometimes took more than a week, during which security services did not inform detainees of the charges against them. Authorities did not provide released detainees with transport

back to the location of their arrest, and these return trips often required several days.

Human rights organizations reported widespread allegations of arbitrary arrest or unlawful detention by transition government security forces, armed groups, and terrorist groups. Detentions often occurred in the wake of attacks by bandits or terrorists and were targeted against members of the ethnic group suspected of carrying out the attacks.

According to these organizations, authorities inappropriately detained some children for alleged affiliation with signatory and nonsignatory armed groups.

In March, authorities arrested university professor Etienne Fakaba Sissoko following the publication of a book in which he claimed government communication was propaganda. On May 20, authorities sentenced Sissoko to two years' imprisonment, with one year suspended, and a 3 million CFA francs fine (\$5,000).

CSP-DPA illegally detained individuals in the Kidal region. In August, CSP-DPA published videos showing at least two alleged Russian paramilitary Wagner Group members and a dozen alleged government soldiers captured in Tinzwaten and several other locations and held in captivity.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibited such practices, but reports indicated the armed forces employed these tactics against individuals with suspected links to extremist groups, including groups affiliated with JNIM.

In July, the UN secretary-general reported instances of violence and human rights abuses by armed groups, militias, violent extremists, and unidentified armed actors.

Also in July, a video on social media showed an individual in military uniform eating the corpse of an alleged terrorist. The armed forces denied the individual was a member of the military and issued a statement on July 17 to

warn against inappropriate use of social media by its personnel.

There were also reports of terrorist groups abusing civilians.

Victims of hereditary slavery and formerly enslaved persons were frequently subjected to abuse by former slaveholders and community members; the transition government charged several former slaveholders and perpetrators of abuse with crimes against formerly enslaved persons.

Impunity was a significant problem in the security forces, including the armed forces, according to various nongovernmental organizations.

The law prohibited female genital mutilation/cutting (FGM/C). The government did not effectively enforce the law. Except in certain northern areas, all religious and ethnic groups practiced FGM/C widely, particularly in rural areas. According to UNICEF, 89 percent of women ages 15 to 49 were circumcised, but this varied widely by geographic location. Nearly three-quarters of girls younger than 15 had been circumcised.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Soldiers

The Secretary of State determined Mali had government security armed forces, police, former signatory armed groups, and terrorist organizations that recruited or used child soldiers during the reporting period from April 2023 to March 2024. See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

The United Nations reported numerous armed groups recruited or used child soldiers.

Child Marriage

The minimum age to marry without parental consent was 16 for girls and 18 for boys. A girl age 15 could marry with parental consent and with approval of a civil judge. Authorities did not effectively enforce the law, particularly in rural areas, and child marriage was widespread throughout the country. Girls were also forced into marriage with combatants and leaders of armed groups.

In some regions, especially Kayes and Koulikoro, girls married as young as age 10. It was common practice in those regions for a girl age 14 to marry a man twice her age. According to local human rights organizations, officials frequently accepted false birth certificates or other documents indicating girls were old enough to marry.

c. Protection to Refugees

The government generally cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern. Insecurity affected the delivery of humanitarian assistance.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had a system for providing protection to refugees. The National Committee in Charge of Refugees operated with assistance from UNHCR. Large refugee flows strained already scarce resources dedicated to protecting and caring for refugees.

Resettlement

The government supported the voluntary return of refugees from the Central African Republic, Senegal, and Burkina Faso.

d. Acts of Antisemitism and Antisemitic Incitement

Local observers estimated there were fewer than 50 Jews in the country, and there were no known reports of antisemitic incidents.